

Small Claims Hearing Prep — July 22, 2026 (Wake County Magistrate)

Claim: Robert L. Brizzi v. Tesla, Inc. · **Amount:** \$7,500 + IRS interest + court costs · **Your goal:** a money judgment. Keep it simple — Tesla certified \$7,500, failed to file, you lost \$7,500.

Not legal advice. This is an organizational aid for a pro se hearing.

1. Bring THREE copies of every exhibit (magistrate, you, Tesla)

Put them in this order; the signed Form 15400 is your lead exhibit.

#	Exhibit	What it proves
A	Signed Form 15400 (08/21/2025, Dan Ansari, GM)	Tesla's own signed certification that you qualify for \$7,500
B	IRS Notice CP23 (06/08/2026)	IRS removed exactly \$7,500 (tax \$28,939 → \$36,439); the loss is real
C	Tesla Order Agreement (RN125485754)	The sale; the clause that preserves small claims
D	Your emails to Tesla (03/26–27/2026)	You demanded a fix; Tesla didn't resolve it
E	Form 8936 (as filed)	You properly claimed the credit with the correct VIN
F	One-page damages sheet	\$7,500 + interest = amount requested

Bring **originals** to show the magistrate; hand up the **copies**.

2. Your opening (say this, ~90 seconds)

"Your Honor, in August 2025 I bought a new Tesla Model Y and qualified for the \$7,500 federal Clean Vehicle Credit. At delivery, Tesla's own general manager signed this IRS Form 15400 — Exhibit A — certifying under penalty of perjury that I qualified for the full \$7,500. But to make the credit real, Tesla had to file a matching report with the IRS electronically, and **they never did**. Because Tesla never filed it, the IRS disallowed my credit — Exhibit B — and billed me \$7,500 plus interest. I qualified. I did everything right. I lost \$7,500 solely because Tesla failed to complete a filing it had already signed. I'm asking for a judgment of \$[7,500 + interest] plus court costs."

3. Damages — keep the math clean

- IRS removed **exactly \$7,500** (Exhibit B: total tax \$28,939 → \$36,439).
- Plus IRS interest (was \$20.58 as of 06/08/2026 — **recompute to the hearing date** and state the current figure).

- **Ask for:** \$[7,500 + current interest] + court costs.

4. Anticipate Tesla's moves — and your rebuttals

If Tesla says...	You say...
"This must go to arbitration."	"Your Honor, Tesla's own Order Agreement says: <i>'If you prefer, you may instead take an individual dispute to small claims court.'</i> This forum is expressly permitted." (Exhibit C)
"We disclaim any guarantee of incentives."	"I'm not claiming a guarantee — I <i>was</i> eligible. My loss came from Tesla failing to perform a filing it signed and certified, not from any eligibility guarantee."
"It's the IRS's fault / go to the IRS."	"Only the seller can file the time-of-sale report. The IRS denied it <i>because</i> Tesla never filed. Tesla certified \$7,500 in writing — Exhibit A."
"The credit ended / portal is closed."	"False. My car was placed in service Aug 21, 2025, before the cutoff, and IRS guidance keeps the portal open for registered sellers like Tesla to submit and correct reports."
Tesla doesn't appear	"I request a default judgment, Your Honor." (Bring proof of proper service on Tesla's registered agent.)

5. Logistics / do's & don'ts

- **Confirm service** on Tesla's NC registered agent was completed and bring the return-of-service proof — improper service is the #1 reason cases get continued.
- Arrive **early**, dress neatly, address the magistrate as "**Your Honor.**"
- Stick to **money owed**; stay calm and factual. **Do not** ask for pain and suffering — a magistrate awards economic loss, not emotional distress.
- Let Tesla talk; correct only facts, using your exhibits by letter.
- Have the **one-line theory** ready if interrupted: *"Tesla certified the credit, never filed it, and I got billed \$7,500."*

5b. The "mic-drop" — hand up Exhibit A and let it land

Your whole case fits on one piece of paper: **Tesla's own signed Form 15400**. Use it as the weapon. When you hand it to the magistrate, say:

"Your Honor, everything Tesla disputes is answered by Tesla's own signature. On this form, Tesla's general manager certified — under penalty of perjury — my name, my VIN, that I took delivery for my own use, and the exact number: seven thousand five hundred dollars. Tesla wrote that. Tesla signed that. Then Tesla failed to file it. I'm not asking you to take my word for anything — I'm asking you to hold Tesla to its own."

Then stop talking. Let the silence do the work.

Three lines to keep in your pocket (use one, don't force all three): - "Tesla certified the credit, never filed it, and sent me the bill." - "I have Tesla's signature saying I qualified, and the IRS saying Tesla never filed. Both are Tesla's doing." - "The only party who could file this report is the one that didn't — Tesla."

Rebuttal drill (say these out loud a few times before the 22nd): - Arbitration → "Their own contract preserves small claims." (Exhibit C) - Disclaimer → "I was eligible; they failed to file. Different thing." - Blame IRS → "The IRS denied it *because* Tesla didn't file." - Portal closed → "False — placed in service before the cutoff; portal stays open for registered sellers."

6. After the hearing

- If you win: get the written judgment; note how/when Tesla must pay.
- Winning here does **not** bar the separate IRS fix — keep pressing Tesla/corporate to file the ECO report so the credit itself is restored (avoid double recovery: credit any payment received).
- The **Aug 7 IRS CP23 deadline still stands** regardless of the hearing outcome — mail that response (with Sterling).